

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**COMPLAINANT’S RESPONSE TO RESPONDENTS’ MOTION
FOR AN EXTENSION OF TIME TO FILE AN ANSWER**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. §§ 502.69, .71), Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) respectfully submits this brief response in opposition to Respondents’ Motion for an Extension of Time to File an Answer, filed December 2, 2020.

Commission Rule 62(b)(1) obligates a respondent to file its answer to a complaint “within 10 days after service of an order denying” a motion to dismiss. In the November 18, 2020 Order denying Respondents’ motion to dismiss, the Presiding Officer provided

Respondents with an additional eight days to answer. Respondents were served with IMCC's Complaint in August 2020, almost four months ago.

Respondents fail to explain why they are unable to file their answers, as ordered, on December 8. Nor do Respondents provide any good cause to delay the start of discovery in this proceeding, or identify any prejudice they would suffer. Their decision to request leave to file an interlocutory appeal and seek an indefinite stay of discovery—both of which IMCC will oppose—not only lacks any legal merit and wastes judicial resources but also undermines the expeditious completion of the 150-day discovery period and the submission of the case to the Presiding Officer for an initial decision by August 24, 2021.

IMCC offered to not oppose a motion by Respondents for a reasonable seven-day extension of the time to answer, contingent upon their fulfilling their obligation to work cooperatively with IMCC to file the joint status report by the December 18, 2020 deadline. IMCC continues to believe it is important for the parties to maintain the schedule as currently established by the Presiding Officer.

Finally, Respondents' claim that the commencement of discovery would be "inefficient" is simply incorrect. IMCC remains prepared to comply with all discovery deadlines. In fact, to expedite the discovery process and ensure compliance with the discovery deadlines in this proceeding, IMCC served its first requests for production of documents on the Respondents on October 14, 2020, with a proposed return date of 30 days after the filing of Respondents' answers.

For these reasons, the IMCC sees no justification to further delay proceedings in this case, and respectfully requests that the Commission deny Respondents' Motion for an Extension of Time to File an Answer.

DATED: December 4, 2020

Respectfully submitted,

/s/ W. Stephen Cannon

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CERTIFICATE OF SERVICE

I certify that, on December 4, 2020, a true and current copy of the foregoing brief in opposition to Respondents' Motion for an Extension of Time to File an Answer was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following Respondents' counsel:

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